RP-2023-267439
07/18/2023 ER $42.00

SUPPLEMENTAL AMENDMENT TO THE DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS FOR MASON WOODS

SECTION 4

STATE OF TEXAS §
§
COUNTY OF HARRIS §

This Supplemental Amendment to the Declaration of Covenants, Conditions, and Restrictions for Mason Woods, Section 4 (this "***Supplemental Amendment***") is made by TPHTM 529, LLC, a Delaware limited liability company ("***Declarant***").

RECITALS:

WHEREAS, Declarant filed the Declaration of Covenants, Conditions, and Restrictions for Mason Woods in the Official Public Records of Harris County, Texas under Clerk's File No. RP-2022-378389, as same has been or may be amended from time to time (the "***Declaration***"); and

WHEREAS, pursuant to Article III of the Declaration, Declarant reserved the exclusive right to annex additional property into Mason Woods and to subject the additional property to the Declaration and to the jurisdiction of the Mason Woods Community Association, Inc., a Texas nonprofit corporation (the "***Association***"); and

WHEREAS, pursuant to the terms of Article III of the Declaration, Declarant may subject additional property to supplemental restrictions that apply only to the real property being annexed and may create exceptions to, or otherwise modify, the terms of the Declaration in order to reflect the different or unique character and intended use of such annexed real property; and

WHEREAS, Declarant is the owner of certain real property, as shown on the map or plat for Grand Mason Sec 4, recorded under Clerk's File Number RP-2023-180844 in the Official Public Records of Harris County, Texas ("***Section 4***"); and

WHEREAS, reference is made to the Declaration for all purposes, and the capitalized terms used in this Supplemental Amendment have the meanings set forth in the Declaration, unless otherwise specified in this Supplemental Amendment.

NOW, THEREFORE, pursuant to the powers retained by Declarant in the Declaration, Declarant annexes Section 4 into Mason Woods. Section 4 carries with it all the rights, privileges, and obligations granted to the Property initially encumbered by the Declaration, including, but not limited to, the right to be annexed, and is annexed into the body of the Property subject to the Declaration and submitted to the jurisdiction of the Association. Section 4 will be held, transferred, sold, conveyed, used, and occupied subject to the covenants, Assessments, restrictions, easements, charges, and liens set forth in the Dedicatory Instruments, including, but not limited to, the Declaration and this Supplemental Amendment.

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RP-2023-267439

Pursuant to the powers retained by Declarant in the Declaration, Declarant designates, declares, adopts, establishes, and imposes the following supplemental restrictions for Section 4:

1. Square Footage Requirements:

All Dwellings within Section 4 must contain a minimum of 1,200 square feet of living area. Living area does not include porches, garages, or non-air conditioned areas.

2. Notices:

Owners and Occupants of Lots within Section 4 are advised that the following conditions exist or may exist within or near Section 4 (collectively referred to as the "***Conditions***"):

a. A number of manmade, natural, and environmentally sensitive areas may exist within or in proximity to the Property, including Section 4, and these areas may serve as habitats for a variety of native plants and wildlife, including, without limitation, insects, alligators, bobcats, coyotes, venomous and non-venomous snakes and other reptiles, deer, armadillos, and other animals, some of which may pose hazards to persons or pets coming in contact with them.

b. Reserve areas exist throughout the Property, including the following restricted reserves within Section 4: Restricted Reserves A, B, and C, restricted in their use to landscape and open space purposes; and Restricted Reserve D, restricted in its use to compensating open space.

c. Several lakes or detention reserves exist either in proximity to or within the Property, including Harris County MUD No. 559 Detention Reserve H which exists to the south of Section 4, outside the platted area. Owners and Occupants are advised that one or more fountains have been or may be installed in the lakes or detention reserves.

d. Adjacent land that is not owned by the Association or Declarant exists in proximity to the Property, outside of the platted area.

e. A 170-foot drainage easement, more particularly described that instrument recorded under Harris County Clerk's File No. 20110060205, exists to the east of Section 4, outside the platted area.

f. A 10-foot H.L.&P. easement with an 11.5-foot aerial easement, more particularly described by that instrument recorded under Harris County Clerk's File No. 20100120808, exists in proximity to and within Section 4, along the rear Lot lines of Lots 1 – 20, Block 2, within the platted Lots. Overhead power lines exist or may exist within these easements.

g. The Cypress Fairbanks ISD Westgreen Boulevard Multi-School Site, more particularly described by that instrument recorded under Film Code No. 653063 in the Harris County Map Records, exists or may exist in proximity to the Property.

RP-2023-267439

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h. A 50-foot Tennessee Gas Transmission Co. easement, more particularly described by that instrument recorded in Volume 2370, page 188 of the Harris County Deed Records, exists along the northwest perimeter of Section 4, outside the platted area.

i. A 50-foot Tennessee Gas Transmission Co. easement, more particularly described by that instrument recorded in Volume 1325, page 588 of the Harris County Deed Records, exists along the northwest perimeter of Section 4, outside the platted area.

j. A 50-foot Tennessee Gas Transmission Co. easement, more particularly described by that instrument recorded in Volume 1843, page 652 of the Harris County Deed Records, exists along the northwest perimeter of Section 4, outside the platted area.

k. A 10-foot pipeline easement, more particularly described by that instrument recorded under Harris County Clerk's File No. RP-2022-552870, exists to the west of Section 4, outside the platted area.

Owners are advised that there may be potentially dangerous conditions that exist within or near portions of the Property, such as, by way of illustration and not limitation, the following: holes, streams, roots, stumps, ditches, gullies, flooding, standing water, murky water, erosion, instability of natural topography, insects, reptiles, and animals. It is possible for some or all of these conditions to extend into the Lots within Section 4. Each Owner and Occupant of any Lot, and every person entering Section 4 (i) acknowledges that there are plants and wildlife that are indigenous to the area and are not restrained or restricted in their movements within or throughout the Property; and (ii) assumes all risk of personal injury arising from the presence of such plants and wildlife within the Property. Neither the Association, Declarant, any successor declarant, nor the members, partners, affiliates, officers, directors, agents, or employees of any of the foregoing, have any duty to take action to control, remove, or eradicate any plant or wildlife in the Property, nor are they liable for any injury resulting from the presence, movement, or propagation of any plant or wildlife within or throughout the Property.

OWNERS AND OCCUPANTS OF LOTS WITHIN SECTION 4 AGREE TO HOLD HARMLESS DECLARANT AND THE ASSOCIATION, INCLUDING THEIR RESPECTIVE DIRECTORS AND OFFICERS, AND RELEASE THEM FROM ALL LIABILITY FOR THE EXISTENCE, PLACEMENT, CONSTRUCTION, DESIGN, OPERATION, REPLACEMENT, AND MAINTENANCE OF THE CONDITIONS AND AGREE TO INDEMNIFY SUCH RELEASED PARTIES FROM ALL LIABILITY RELATED TO SUCH OWNER'S OR OCCUPANT'S USE OF, OR PROXIMITY TO, THE CONDITIONS.

Each Owner and Occupant of a Lot within Section 4 acknowledges and understands that the Association, its Board, and Declarant are not insurers and that each Owner and Occupant assumes all risks for loss or damage to persons and property. Each Owner and Occupant of a Lot within Section 4 further acknowledges that the Association, its directors, officers, managers, agents, and employees, Declarant, and any successor declarant have made no representations or warranties, nor has any Owner or Occupant relied upon any representations or warranties, expressed or implied, relative to water levels, water clarity, safety, any use, or any future change in use of the Conditions.

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RP-2023-267439

Owners of Lots within Section 4 grant an easement to Declarant and the Association, including their respective designees, for incidental noise, water, lighting, electromagnetic field, odors, parking, overspray from fountains, visibility, and traffic that may occur due to the Conditions. There is further reserved for Declarant, the Association, and their designees an easement to the extent necessary over portions of Lots located in proximity to the Conditions for water and overspray of products used to control vegetation within the Conditions.

Declarant and the Association are not responsible for any loss, damage, or injury to any person or property arising out of the authorized or unauthorized use of the Conditions within the Property.

Owners and Occupants of Lots that are located in proximity to the Conditions must take care and may not permit any trash, fertilizers, chemicals, petroleum products, environmental hazards, or any other foreign matters to infiltrate the Conditions. **ANY OWNER OR OCCUPANT PERMITTING OR CAUSING SUCH INFILTRATION MUST INDEMNIFY AND HOLD HARMLESS THE ASSOCIATION, INCLUDING ITS DIRECTORS AND OFFICERS, FOR ALL COSTS OF CLEAN UP AND REMEDIATION NECESSARY TO RESTORE THE CONDITIONS TO THEIR CONDITION IMMEDIATELY PRIOR TO ANY SUCH INFILTRATION.**

This Supplemental Amendment may only be amended as provided in Article XV of the Declaration.

[SIGNATURE PAGES FOLLOW]

RP-2023-267439

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IN WITNESS WHEREOF, this Supplemental Amendment to the Declaration of Covenants, Conditions, and Restrictions for Mason Woods, Section 4 is executed as of the 17 day of July, 2023.

DECLARANT:

TPHTM 529, LLC, a Delaware limited liability company

By: _____
Print Name: Collins Pier
Print Title: Vice President

STATE OF TEXAS §
§
COUNTY OF Harris §

This instrument was acknowledged before me on this 17 day of July, 2023, by Collins Pier, the Vice President of TPHTM 529, LLC, a Delaware limited liability company, on behalf of said entity.

Lindsey Kucera
Notary Public - State of Texas

LINDSEY KUCERA
Notary ID #129614853
My Commission Expires
October 9, 2026

RP-2023-267439

After Recording Please Return To:
Lisa L. Gambrell
Roberts Markel Weinberg Butler Hailey PC
2800 Post Oak Blvd., 57th Floor
Houston, TX 77056

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LIENHOLDER CONSENT AND SUBORDINATION

U.S. BANK NATIONAL ASSOCIATION, a national banking association, being the sole beneficiary of a purchase money mortgage lien (as set forth in the Declaration) and other liens, assignments and security interests encumbering all or a portion of the Property consents to the terms and provisions of this Supplemental Amendment to which this Lienholder Consent and Subordination is attached and acknowledges that the execution thereof does not constitute a default under the lien document or any other document executed in connection with or as security for the indebtedness above described, and subordinates the liens of the lien document and any other liens or security instruments securing said indebtedness to said Supplemental Amendment (and the covenants, conditions and restrictions in the Supplemental Amendment), and acknowledges and agrees that a foreclosure of said liens or security interests does not extinguish this Supplemental Amendment (or the covenants, conditions and restrictions in the Supplemental Amendment). No warranties of title are made by lienholder, lienholder's joinder to this Supplemental Amendment being solely limited to such consent and subordination.

SIGNED AND EXECUTED THIS on July 12, 2023.

U.S. BANK NATIONAL ASSOCIATION,
a national banking association

By: Deanna R Llanos
Print Name: Deanna L. Llanos
Title: Vice President

STATE OF TEXAS §
COUNTY OF _____ §

This instrument was acknowledged before me on the _____ day of _____ 2023, by _____, the _____ of U.S. BANK NATIONAL ASSOCIATION, a national banking association, on behalf of said entity.

_____
Notary Public – State of Texas

RP-2023-267439

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NOTARY ACKNOWLEDGMENT

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

STATE OF CALIFORNIA

COUNTY OF ORANGE

On July 12, 2023, before me, Deanna Rose Perez, a Notary Public, personally appeared Deanna L. Llanos, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

DEANNA ROSE PEREZ
COMM. #2417378
Notary Public - California
Orange County
My Comm. Expires Sep. 21, 2026

Signature

(Seal)

RP-2023-267439

RP-2023-267439

Pages 8

07/18/2023 10:26 AM

e-Filed & e-Recorded in the

Official Public Records of

HARRIS COUNTY

TENESHIA HUDSPETH

COUNTY CLERK

Fees $42.00

RP-2023-267439

RECORDERS MEMORANDUM
This instrument was received and recorded electronically and any blackouts, additions or changes were present at the time the instrument was filed and recorded.

Any provision herein which restricts the sale, rental, or use of the described real property because of color or race is invalid and unenforceable under federal law.
THE STATE OF TEXAS
COUNTY OF HARRIS
I hereby certify that this instrument was FILED in File Number Sequence on the date and at the time stamped hereon by me; and was duly RECORDED in the Official Public Records of Real Property of Harris County, Texas.

COUNTY COURT OF HARRIS COUNTY, TEXAS

Teneshia Hudspeth
COUNTY CLERK
HARRIS COUNTY, TEXAS